**VUNGU RURAL DISTRICT COUNCIL**
**Versus**
**ZIMBABWE RURAL DISTRICT COUNCILS WORKERS UNION**
**AND**
**THE SHERIFF OF HIGH COURT**

IN THE HIGH COURT OF ZIMBABWE
NDUNA J
BULAWAYO 23 JANUARY & 17 FEBRUARY 2026

**Urgent application**

*E Mubaiwa,* for the applicant
*T Nyamucherera,* for the 1st respondent

**NDUNA J**: The applicant is a local authority. The respondents are workers' unions representing employees within the relevant industry. The matter arises from proceedings in the Labour Court, where a dispute emerged concerning alleged arrear salaries said to be due to members of the applicant's workforce. The disagreement centres on liability for, and payment of, those outstanding amounts. The applicant has now approached this court seeking relief in terms set out in its draft order as follows: -

**Terms of the final order**

*That you show cause to this Honourable Court why a final order should not made in the following terms: -*

a) *An order for stay of execution of the applicant's property be an dis hereby granted until the final determination of the Applicant's rescission application under HCBC1483/25*
b) *The 1st Respondent to pay costs of suit*

**Interim Relief**

*Pending the determination of this matter, the applicant is granted the following relief: -*

a) *Pending the return date, the 1st and 2nd Respondents be and are hereby ordered to stay the execution of court order granted under HCBC1028/25*
b) *The 1st and 2nd Respondent to pay cost of suit*

Having filed their application, there was a reason or reasons why the applicant could not be heard. Instead, its postponement was agreed upon and the conditions of such postponement was issued as a court order. It is to the following effect: -

1. *The matter is duly postponed to Friday 6th February 2026 at 1415hours*

*2. The applicant to file his papers on 30 January 2026*

*3. The respondent to have filed his papers on 3rd February 2026*

*4. The cost remain costs in the cause*

It is apparent that the order is to the effect that each of the parties was given the timeline within which to file his papers. Instead of having filed his papers on 3rd February 2026, the Respondent filed his papers on 4th February 2026. A check at the current and prevailing calendar shows that the 3rd of February 2026 was a Tuesday. Therefore, the court's management order should have been complied with by the close of business of the said date on 3rd February 2026. It means that the filing of the papers on the 4th of February 2026 was out of time. No condonation had been applied for this anomalous conduct of the respondent. The applicant raised objection to him being heard and prays that he be found to have been in default and an order be granted to that effect. It is argued that once the court issued an order, granting parties timelines in filing their papers, the issue is no longer being governed in terms of the court's rules, but by the terms of the order so issued.

The response gotten from the applicant is an application for condonation. He seeks to be condoned for the infringement of the rules.

The law is very clear.

What is before the court is an application to declare the opposing party barred for failure to file its papers by the stipulated deadline of 3 February 2026. The party affected provides no explanation for the default. The record reflects that prior

postponements were granted to enable Mr Mudzuri to handle the matter. There is no affidavit from Mr Mudzuri, nor any explanation for the failure to file the requisite papers within the extended timeframe.

A court does not grant relief in the abstract. A party seeking indulgence or resisting procedural consequences must place before the court cogent and satisfactory reasons for non-compliance. A bare request, unsupported by explanation, invites the court to act without proper basis. Judicial discretion must be exercised on established grounds, not on speculation or assumption.

In determining whether to grant a bar or deem a matter unopposed, the court must assess whether good cause has been shown for the default. Where none is advanced, there is no basis upon which the court can excuse the failure or extend further indulgence.

In the absence of any explanation for the non-compliance, the point is well taken. The application is accordingly granted. The opposition is struck off and the matter is deemed unopposed.

*Chimwamurombe Legal Practice,* applicant's legal practitioners
*Lawman Law Chambers,* 1st respondent's legal practitioners